

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 2732 of 2023

In the matter of:

Surupa Hossain Bhuiyan.

...Petitioners.

-Vs-

Present
Mr. Justice Mamnoon Rahman

Md. Masum Hedayetul Islam.

....Opposite party.

Ms. Nazmus Saliheen, Adv.

...For the petitioners.

Mr. A.B.M. Bayezid, Adv.

...For the opposite party.

The 9th January, 2024

Today is fixed for passing necessary order.

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 28.05.2023 passed by the learned Joint District Judge, Additional Court, Dhaka in Family Appeal No. 223 of 2022 allowing the appeal and modifying the order dated 17.11.2022 passed by the learned Assistant Judge, 2nd Additional Court and Family Court, Dhaka in Family Suit No. 1191 of 2021 in which the learned Family Court passed a direction upon the parties in respect of visiting right of the plaintiff, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

I have heard the learned Advocates for the petitioner as well as opposite party. I have perused the impugned judgment and order passed

by the trial court as well as lower appellate court, revisional application, application for stay, application for vacating the order of stay, supplementary affidavits filed by the parties. I have also called the minor child in question to my chamber and heard him.

However, on perusal of the papers and documents, it transpires that the substantive case, namely the case for custody is pending before the Family Court being Family Suit No. 1191 of 2021 and the said court is yet to decide the question of custody of the child in question after taking evidence both oral and documentary.

In such circumstances, I am of the view that justice would be done if a direction be given upon the court below to hear and dispose of the suit expeditiously, as possible, within a fixed period. Accordingly, the court below is directed to hear and dispose of the suit being Family Suit No. 1191 of 2021 strictly on merit by applying its independent and judicial mind within 31st April, 2024 without fail and without giving any adjournment to the parties.

The said Family Court Judge, Dhaka is further directed to inform this court about such disposal in writing through the Registrar of the High Court Division within 7(seven) days from the date of disposal of the same.

In the meantime, the petitioner is directed to allow the father to visit the child twice a month preferably the holidays in a public place in presence of the mother for a period of 4-6 hours in each occasion. However, the trial court is at liberty to enhance or decrease the visiting

right considering the facts and circumstances and if any application is being made by the parties.

With this observation and direction the instant rule is disposed of.

The office is directed to communicate the judgment and order to the concerned court below at once.

(Mamnoon Rahman,J:)